

Amendment No. 1 to HB1236

Terry
Signature of Sponsor

AMEND Senate Bill No. 1154*

House Bill No. 1236

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 71, Chapter 5, Part 3, is amended by adding the following as a new section:

- (a) This section is known and may be cited as the "Tennessee Healthy SNAP Act."
- (b) The purpose of this section is to ensure the supplemental nutrition assistance program (SNAP) in this state aligns with its intended purpose of improving food security and nutrition by prohibiting the purchase of candy and soft drinks with SNAP benefits.
- (c) The department shall submit a request for a waiver to the United States department of agriculture's food and nutrition service using the process established in 7 U.S.C. § 2026 to seek authorization to exclude candy and soft drinks from the definition of eligible foods, as defined in 7 C.F.R. § 271.2.
- (d) The waiver request must include:
 - (1) A justification citing:
 - (A) Public health concerns;
 - (B) SNAP's statutory intent; and
 - (C) Cost savings to taxpayers;
 - (2) An implementation plan ensuring that existing point-of-sale systems used by retailers in this state have the ability to properly enforce the restriction;
 - (3) A strategy for education and outreach informing SNAP recipients of alternative healthy food options; and

(4) A reporting mechanism to track the impact of the waiver, including spending patterns and health outcomes.

(e) If the waiver is approved, then the department shall implement the restriction within one (1) year of receiving federal authorization.

(f) The department shall submit an annual report to the governor and the chair of the health and welfare committee of the senate and chair of the committee of the house of representatives having jurisdiction over health-related matters on the following:

- (1) The status of the waiver request;
- (2) Data on SNAP spending patterns in this state; and
- (3) Any identified challenges or recommendations for further policy action.

(g)

(1) As used in this section:

(A) "Candy" has the same meaning as defined by the United States department of agriculture; and

(B) "Soft drink":

(i) Means a nonalcoholic beverage that is made with carbonated water and that is flavored or sweetened with added sugar or artificial sweeteners such as corn sweetener, corn syrup, dextrose, fructose, glucose, high-fructose corn syrup, lactose, malt syrup, maltose, molasses, raw sugar, and sucrose, or any beverage meeting the definition § 67-4-402(a)(1); and

(ii) Does not mean any beverage that contains milk, milk products, soy, rice, or other milk substitutes, or that is greater than fifty percent (50%) vegetable or fruit juice by volume, or that contains less than five (5) grams of added sugar.

SECTION 2. This act takes effect July 1, 2025, the public welfare requiring it.